

The Motion for Summary Judgment shall either be continued for the court to receive and review the associated Opposition documents or be continued further out for additional discovery and briefing.

CASE #	CASE NAME	HEARING NAME
CVPS2404465	HARB VS COHEN	MOTION TO BE RELIEVED AS COUNSEL FOR SI HARB

Tentative Ruling: No tentative ruling. Hearing is vacated.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2404465	HARB VS COHEN	MOTION TO BE RELIEVED AS COUNSEL FOR ROBERT REINER

Tentative Ruling: No tentative ruling. Hearing is vacated.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2404465	HARB VS COHEN	MOTION TO BE RELIEVED AS COUNSEL FOR GRANT ENTERTAINMENT, LLC, AN OHIO LIMITED LIABILITY COMPANY

Tentative Ruling: No tentative ruling. Hearing is vacated.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO COMPEL PLAINTIFF AMY PENN'S FURTHER RESPONSE TO FORM INTERROGATORIES BY DENNIS N. WALSH TRUSTEE OF DENNIS N. WALSH REVOCABLE

Tentative Ruling: A party may file a motion compelling further answers to interrogatories and requests for production if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., §§ 2030.300, 2031.310.) Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at §§ 2030.300(c), 2031.310(c).) On the merits, there are two distinct issues: (1) the impact of the default and (2) whether a cross-defendant can serve plaintiffs discovery.

On the former, a defendant in default has no rights in litigation until it moves to set aside the default or default judgment is entered. (*Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.* (1984) 155 Cal.App.3d 381, 385-386.) However, Walsh, individually, is only defaulted on the complaint—not the cross-complaint. Plaintiffs assert that Walsh individually and as trustee are the same, by citing to *Aulisio v. Bancroft* (2014)